

1 AN ACT relating to the Geographic Information Advisory Council.

2 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

3 ➔Section 1. KRS 42.740 is amended to read as follows:

- 4 (1) There is hereby established a Geographic Information Advisory Council, attached
5 to the Commonwealth Office of Technology for administrative purposes, to advise
6 the executive director of the Commonwealth Office of Technology on issues
7 relating to geographic information and geographic information systems.
- 8 (2) The council shall recommend policies and procedures that assist state and local
9 jurisdictions in developing, deploying, and leveraging geographic information
10 resources and geographic information systems technology for the purpose of
11 improving public administration.
- 12 (3) The council shall closely coordinate with users of geographic information systems
13 to recommend policies and procedures that ensure the maximum use of geographic
14 information by minimizing the redundancy of geographic information and
15 geographic information resources, as well as to ensure that the geographic
16 information clearinghouse maintained by the Division of Geographic Information
17 Systems meets the needs of all state agencies.
- 18 (4) (a) The Geographic Information Advisory Council shall consist of twenty-five
19 (25) members and one (1) legislative liaison. The members shall be
20 knowledgeable in the use and application of geographic information systems
21 technology and shall have sufficient authority within their organizations to
22 influence the implementation of council recommendations.
- 23 (b) The council shall consist of:
- 24 1. The secretary of the Transportation Cabinet or his or her designee;
25 2. The secretary of the Cabinet for Health and Family Services or his or
26 her designee;
27 3. The director of the Kentucky Geological Survey or his or her designee;

- 1 4. The secretary of the Finance and Administration Cabinet or his or her
2 designee;
- 3 5. The executive director of the Commonwealth Office of Technology or
4 her or his designee, who shall serve as chair;
- 5 6. The secretary of the Economic Development Cabinet or his or her
6 designee;
- 7 7. The commissioner of the Department for Local Government or his or
8 her designee;
- 9 8. The secretary of the Justice and Public Safety Cabinet or his or her
10 designee;
- 11 9. One (1) member appointed by the Governor from a list of three (3)
12 persons submitted by the president of the Council on Postsecondary
13 Education;
- 14 10. The adjutant general of the Department of Military Affairs or his or her
15 designee;
- 16 11. The commissioner of the Department of Education or his or her
17 designee;
- 18 12. The secretary of the Energy and Environment Cabinet or his or her
19 designee;
- 20 13. The Commissioner of the Department of Agriculture or his or her
21 designee;
- 22 14. The secretary of the Tourism, Arts and Heritage Cabinet or his or her
23 designee;
- 24 15. The executive director of the Office of Property Valuation or his or her
25 designee;
- 26 16. One (1) member appointed by the Governor from a list of three (3)~~six~~
27 ~~(6)~~ persons submitted by the president of the Kentucky League of

1 Cities;

2 17. One (1) member appointed by the Governor from a list of three (3)~~six~~
3 ~~(6)~~ persons submitted by the president of the Kentucky Association of
4 Counties;

5 18. One (1) member appointed by the Governor from a list of three (3)
6 persons submitted by the president of the Kentucky Chapter of the
7 American Planning Association;

8 19. One (1) member appointed by the Governor from a list of three (3)
9 persons submitted by the president of the Kentucky Association of
10 Professional Surveyors;

11 20. One (1) member appointed by the Governor from a list of three (3)
12 persons submitted by the president of the Kentucky Society of
13 Professional Engineers;

14 21. One (1) member appointed by the Governor from a list of three (3)
15 persons submitted by the chairman of the Kentucky Board of Registered
16 Geologists;

17 22. One (1) member appointed by the Governor from a list of three (3)
18 persons submitted by the president of the Council of Area Development
19 Districts;

20 23. One (1) member appointed by the Governor from a list of three (3)
21 persons submitted by the president of the Kentucky Association of
22 Mapping Professionals;

23 24. One (1) member appointed by the Governor from a list of three (3)
24 persons submitted by the executive director of the Kentucky Property
25 Valuation Administrators Association; and

26 25. The executive director of the Kentucky Office of Homeland Security.

27 (c) The council shall have one (1) nonvoting legislative liaison, to be appointed

1 by the Legislative Research Commission.

2 (5) The council may have committees and subcommittees as determined by the council
3 or an executive committee, if an executive committee exists.

4 (6) A member of the council shall not:

5 (a) Be an officer, employee, or paid consultant of a business entity that has, or of
6 a trade association for business entities that have, a substantial interest in the
7 geographic information industry and is doing business in the Commonwealth;

8 (b) Own, control, or have, directly or indirectly, more than ten percent (10%)
9 interest in a business entity that has a substantial interest in the geographic
10 information industry;

11 (c) Be in any manner connected with any contract or bid for furnishing any
12 governmental body of the Commonwealth with geographic information
13 systems, the computers on which they are automated, or a service related to
14 geographic information systems;

15 (d) Be a person required to register as a lobbyist because of activities for
16 compensation on behalf of a business entity that has, or on behalf of a trade
17 association of business entities that have, substantial interest in the geographic
18 information industry;

19 (e) Accept or receive money or another thing of value from an individual, firm, or
20 corporation to whom a contract may be awarded, directly or indirectly, by
21 rebate, gift, or otherwise; or

22 (f) Be liable to civil action or any action performed in good faith in the
23 performance of duties as a council member.

24 (7) Those council members specified in subsection (4)(~~b~~)(~~a~~) of this section who serve
25 by virtue of an office shall serve on the board while they hold that office.

26 (8) Appointed members of the council shall serve for a term of four (4) years.
27 Vacancies in the membership of the council shall be filled in the same manner as

1 the original appointments. If a nominating organization changes its name, its
2 successor organization having the same responsibilities and purposes shall be the
3 nominating organization.

4 (9) The council shall have no funds of its own, and council members shall not receive
5 compensation of any kind from the council.

6 (10) A majority of the members shall constitute a quorum for the transaction of business.
7 Members' designees shall have voting privileges at council meetings.